

Summary: Code of Conduct on Disinformation (with DSA Integration)

This document outlines the transition of the voluntary 2018/2022 Code of Practice into an official **Digital Services Act (DSA) Code of Conduct**. Endorsed in February 2025, its integration into the DSA regulatory framework officially takes effect on **1 July 2025**. From this date forward, the commitments become legally auditable and serve as a crucial benchmark for compliance for Very Large Online Platforms (VLOPs) and Very Large Online Search Engines (VLOSEs) under the DSA.

1. Legal Framework & Precedence

The Code operates as a co-regulatory tool designed to complement existing EU legislation while strictly upholding fundamental rights, such as freedom of speech.

- **Legal Precedence:** The DSA and other formal regulations always take legal precedence over the Code. Where voluntary commitments overlap with statutory obligations, the legal provisions prevail.
- **Core Overlapping Regulations: Digital Services Act (DSA):** Adherence acts as a potential risk mitigation measure under Article 35. Specific provisions for ad repositories (Art. 39), data access (Art. 40), and recommender systems (Art. 27) superseded yet are complemented by the Code's reporting structures.
 - **AI Act (Regulation 2024/1689):** Signatories operating AI systems must align with the Act's transparency obligations and prohibitions on manipulative practices.
 - **Other Notable Legislation:** European Media Freedom Act , Transparency and Targeting of Political Advertising (TTPA) Regulation , and GDPR.

2. Definitional Scope of "Disinformation"

For the purposes of the Code, the overarching concept of "**Disinformation**" is broadly categorized into four pillars derived from the European Democracy Action Plan (EDAP):

1. **Misinformation:** False/misleading content shared *without* harmful intent (though effects may be harmful).
2. **Disinformation:** False/misleading content spread *with* the intention to deceive, secure economic/political gain, or cause public harm.

3. **Information Influence Operations:** Coordinated domestic or foreign efforts to manipulate a target audience using deceptive means.
4. **Foreign Interference in the Information Space:** Coercive and deceptive efforts by a foreign state actor to disrupt the free formation of political will.

Exclusions: The scope explicitly **excludes** misleading advertising, reporting errors, satire, parody, or clearly identified partisan news and commentary.

3. The Multi-Stakeholder Ecosystem (42 Signatories)

The Code relies on a multi-stakeholder approach with obligations scaled proportionately to the provider's size, nature, and resources. The signatories (as of February 2025) span 5 major sectors:

Sector	Representative Examples PDF
Major Platforms / VLOSEs	Google, Meta, TikTok, LinkedIn, Microsoft Ads, Microsoft Bing
Specialized Platforms	Twitch, Vimeo, Seznam
Advertising Industry	EACA, IAB Europe, DoubleVerify, Ebiquity
Fact-Checkers	EFCSN, Demagog, Faktograf, Maldita, Newtral
Civil Society / Tech Sol.	Reporters Without Borders (RSF), Adobe, ActiveFence, NewsGuard

4. Key Areas of Commitment

The Code features **43 commitments and 128 specific measures** divided into the following operational pillars:

I. Demonetisation of Disinformation

- Defunding purveyors of disinformation by ensuring they do not benefit from advertising revenues.
- Adopting measures to prevent ads from being placed *next to* disinformation, or advertising itself *containing disinformation*.
- Integrating brand safety tools, source-raters, and trustworthiness indicators into media buying systems.

II. Transparency of Political & Issue Advertising

- Mandatory clear labeling of political and issue-based advertisements, including identifying the sponsor.
- Implementation of strict identity verification systems for ad sponsors before placement is permitted.
- Maintaining searchable public ad repositories for at least 5 years, tracking ad spend, impressions, and targeted demographics.

III. Integrity of Services & AI Systems

- Implementing policies to counter manipulative behaviors (e.g., bot-driven amplification, fake accounts, malicious deepfakes, coordinated inauthentic behavior).
- Commitments to ensure that moderation and detection algorithms are trustworthy, respect user rights, and do not distort user behavior.
- Proactive cross-platform information sharing regarding tactical migration of malicious actors.

IV. User Empowerment & Media Literacy

- Incorporating "safe design" practices into platform architecture to mitigate the viral propagation of false content.
- Facilitating transparent recommender systems, allowing users to view and modify the primary parameters determining their information feed.
- Developing user-friendly reporting/flagging mechanisms protected against mass-flagging abuse.

V. Empowering Research & Fact-Checking Communities

- Providing continuous, automated, real-time/near real-time access to non-personal and anonymized data for vetted researchers via APIs.
- Establishing open, financially sustainable, and non-discriminatory cooperation with independent fact-checking bodies.

- Ensuring fair financial contributions to European fact-checkers and integrating their work consistently across services (including video formats).

5. Governance, Monitoring, & Enforcement

The Code is structured to remain dynamic, future-proof, and subject to rigid accountability metrics:

- **Permanent Task-Force:** Chaired by the European Commission, it comprises all Signatories, the European Board for Media Services (formerly ERGA), EDMO, and the EEAS. It meets at least every 6 months to review commitments against technological and legislative evolution.
- **Transparency Centre:** A publicly accessible website functioning as a centralized reference point where citizens, researchers, and regulators can view policy lists, implementation updates, and crisis-response metrics.
- **Dual-Layer Reporting: * VLOPs / VLOSEs:** Obligated to report every **six months** on Qualitative Reporting Elements (QREs) and Service Level Indicators (SLIs).
 - **Other Signatories:** Eligible for a simplified reporting template, submitting compliance evaluations **annually**.